



United States Department of the Interior
BUREAU OF LAND MANAGEMENT
<https://www.blm.gov>



**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
Over \$250,000**

This document sets forth the justification and approval as required by FAR 6.301.

1. Identification of the Agency and the Contracting Activity:

The Department of the Interior, Bureau of Land Management (BLM), Paria River District Office, requests the Utah State office Procurement Staff, to contract on a sole source with the Garfield County Sheriff's Office for Law Enforcement services.

2. Nature and/or description of the action being approved:

Obtain Law Enforcement Services on an as needed basis to assist BLM Rangers in the administration and regulation of the use and occupancy of public lands within the Garfield County, UT. This service will be procured through the Garfield County Sheriff's Office (GCSO).

3. A description of the Supplies or Services required meeting the Agency's needs, including the estimated value:

This is a request for the approval of a sole source contract with the GCSO to enforce the civil and criminal laws of the State of Utah and/or Garfield County on the public lands, waters, roads, and trails administered by the BLM within Garfield County and the Grand Staircase Escalante National Monument (GSENM). This enforcement is necessary in order to ensure the safety of public land visitors and resources. Current Federal, state and local law enforcement staffing levels in and around Garfield County and the GSENM are not adequate to manage the recent increase in visitation over the past five years. It is not cost effective to temporarily assign multiple BLM and /or other Federal Officers to this area. Costs associated with bringing in additional Federal resources would include travel, vehicle mileage, per diem, and overtime.

GCSO will provide law enforcement services as specified, for the enforcement of Federal, State and local laws relating to the protection of persons and property on the public lands located in Garfield County, Utah and the GSENM. The Contractor shall make certain law enforcement coverage is provided on national holidays and weekends, particularly during the spring and fall to ensure adequate patrols are conducted on BLM administered campgrounds, recreation areas, and other administrative areas during periods of high use and concentrated activities. The total estimated value of the requirement base year, plus four option years, is \$706K.

4. An identification of the statutory authority permitting other than full and open competition:

 X 41 U.S.C. 3304 (a) (1), only one responsible source and no other supplies or services will satisfy agency requirements as implemented by FAR 6.302-1.

 X 43 U.S.C. 1733, Federal Land Policy and Management Act of 1976 Enforcement Authority

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:

The GCSO has the authority required to enforce the civil and criminal laws of the State of Utah and/or Garfield County, including the county ordinances applicable to the public lands, waters, roads, and trails administered by the BLM. GCSO deputies have the necessary qualifications and are certified through the Utah State Peace Officer Standards and Training (P.O.S.T) Council. The GCSO has proven to have the necessary and unique equipment and qualifications to perform the tasks associated with this contract that other agencies in the area do not possess.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies:

Market research was not conducted due to the statute of the FLPMA section 303 authorizing the Government to enter into contracts with local law enforcement officials to act on behalf of federal law enforcement. However, a notice of intent to sole source to Grand County will be posted on SAM.gov.

7. A determination By the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:

The contracting officer determines that the anticipated cost to the government will be fair and reasonable based on government estimates, discussions with the county during market research, and comparison with rates for other law enforcement contracts, the anticipated price for these services is considered fair and reasonable. Final award documentation will contain detailed analysis on price fair and reasonableness.

8. A description of the Market Research conducted (see FAR Part 10) and the results or a statement of the reason Market Research was not conducted:

The only other agencies available to provide these services would be the Utah Highway Patrol (UHP) and Utah Department of Natural Resources (Utah State Parks and Utah Division of Wildlife Resources). The majority of the UHP's vehicles are sedans that are not capable of traveling off road. This greatly increases response time in the event of an emergency and decreases the number of pro-active patrols they can conduct within Grand County and the

GSENM. Utah State Parks and Utah Division of Wildlife Resources do not have sufficient personnel to provide additional staffing to this area as they have other priorities within state parks, on riverways, other high use OHV areas, and wildlife protection duties.

9. **Any other facts supporting the use of Other Than Full and Open Competition, such as: (i) explanation of why technical data packages, specifications, engineering descriptions, statement of work, or purchase descriptions suitable for full and open competition have not been developed or are not available, (ii) When [6.302-1](#) is cited for follow-on acquisitions as described in [6.302-1\(a\)\(2\)\(ii\)](#), an estimate of the cost to the Government that would be duplicated and how the estimate was derived., (iii) When [6.302-2](#) is cited, data, estimated cost, or other rationale as to the extent and nature of the harm to the Government.**

As stated above, the GCSO is the only contractor that can provide the required Law Enforcement Services to assist BLM Law Enforcement and enhance the interagency cooperation. No other facts are available to support this procurement as anything other than a sole source.

10. A listing of the sources, If any, that expressed in writing, an interest in the acquisition:

The notice of the Government's intent to sole source to Garfield County was posted to SAM.gov with a response date of April 11, 2025. However, due to the unique requirements of this contract and the fact that the GCSO has jurisdiction over the areas listed in the SOW, it would not be to the Government's benefit to contract with an entity other than GCSO due to the facts stated in this memo.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the Supplies or Services required:

Due to the unique qualifications of the GCSO and the fact that the sheriff's office has jurisdiction throughout Garfield County, there are no future plans to allow for competition.

12. Certification:

I certify that any supporting data that is the responsibility of technical or requirements personnel (i.e. verifying the Government's minimum needs or schedule requirements or other rationale for other than full and open competition) and which form a basis for the justification have been certified as complete and accurate:

//Signature on File//
Vicki Tyler, Assistant District Manager
Color Country District, BLM-UT

I certify that the justification is accurate and complete to the best of my knowledge and belief:

//Signature on File//
Daniel Walker, Contract Specialist
Utah State Office

//Signature on File//
Temujene H. Makua, Contracting Officer
Utah State Office